

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

# CASE OF GORODNICHEVA AND OTHERS v. RUSSIA

*(Applications nos. 43566/21 and 27 others –*
*see appended list)*

JUDGMENT

STRASBOURG

18 January 2024

*This judgment is final but it may be subject to editorial revision.*



**In the case of Gorodnicheva and Others v. Russia,**

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 December 2023,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

# THE LAW

## I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

## III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

## IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO).

## V. REMAINING COMPLAINTS

13. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraph 12 above, the Court considers that there is no need to deal separately with these remaining complaints.

## VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

# FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints raised by the applicants;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 18 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

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|---|---|
| Viktoriya Maradudina<br>Acting Deputy Registrar | Péter Paczolay<br>President |

# APPENDIX

## List of applications raising complaints under Article 11 of the Convention
## (disproportionate measures against organisers and participants of public assemblies)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 1. | 43566/21<br>11/08/2021 | **Elvira Ildusovna GORODNICHEVA**<br>1988 | Nurgaleyev Danil Ilnurovich<br>Kazan | Rally "Free Navalnyy"<br>Kazan<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Republic of Tatarstan<br>31/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report. | 4,000 |
| 2. | 43583/21<br>11/08/2021 | **Ramil Valeryevich URAZMANOV**<br>1993 | Nurgaleyev Danil Ilnurovich<br>Kazan | Rally "Free Navalnyy"<br>Kazan<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Republic of Tatarstan<br>10/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report. | 4,000 |
| 3. | 43584/21<br>11/08/2021 | **Lenar Maskhutovich KHANGARAYEV**<br>1985 | Nurgaleyev Danil Ilnurovich<br>Kazan | Rally "Free Navalnyy"<br>Kazan<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Republic of Tatarstan<br>14/04/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report. | 4,000 |
| 4. | 43587/21<br>11/08/2021 | **Yevgeniy Vasilyevich CHERNYSHEV**<br>1992 | Nurgaleyev Danil Ilnurovich<br>Kazan | Rally "Free Navalnyy"<br>Kazan<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Republic of Tatarstan<br>03/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 5. | 43634/21<br>11/08/2021 | **Yelena Sirinovna ZAKIYEVA**<br>1991 | Nurgaleyev Danil Ilnurovich<br>Kazan | Rally "Free Navalnyy"<br>Kazan<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Republic of Tatarstan<br>03/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report. | 4,000 |
| 6. | 43650/21<br>12/08/2021 | **Dmitriy Vyacheslavovich ABRAMOV**<br>1984 | Glukhov Aleksey Vladimirovich<br>Novocheboksarsk | Rally "Free Navalnyy"<br>Cheboksary<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Chuvashia Republic<br>18/05/2021 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 3,500 |
| 7. | 59557/21<br>19/11/2021 | **Aleksey Yevgenyevich KOZYRENKO**<br>2001 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Moscow City Court<br>19/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.50 p.m. on 31/01/2021 until 5.40 p.m. on 01/02/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 8. | 59612/21<br>19/11/2021 | **Grigoriy Mikhaylovich DRACH**<br>1996 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 20,000 | Moscow City Court<br>19/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.30 p.m. until 11.45 p.m. on 31/01/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 9. | 59615/21<br>19/11/2021 | **Yegor Nikolayevich MITEREV**<br>1987 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 18,000 | Moscow City Court<br>19/05/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 02/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 10. | 59655/21<br>17/11/2021 | **Nikolay Leonidovich KHARISOV**<br>1983 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>23/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 12,000 | Moscow City Court<br>17/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.00 p.m. on 23/01/2021 until 3.00 p.m. on 25/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 11. | 59664/21<br>17/11/2021 | **Diana Pavlovna AKHMADEYEVA**<br>1986 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Moscow City Court<br>17/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.30 p.m. until 9.00 p.m. on 31/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 12. | 59671/21<br>17/11/2021 | **Denis Nikolayevich VOLEGOV**<br>1990 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Kaliningrad<br><br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Kaliningrad Regional Court<br>18/05/2021 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 3,500 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 13. | 59673/21<br>01/12/2021 | **Ilya Vladimirovich LEYKIN**<br>1984 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>29/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.18 a.m. on 02/02/2021 until 1.00 a.m. on 03/02/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 14. | 59676/21<br>01/12/2021 | **Sabina Faikovna KATASONOVA**<br>1997 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>03/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.00 p.m. on 02/02/2021 until 9.20 a.m. on 03/02/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 15. | 59683/21<br>13/11/2021 | **Sergey Yuryevich KHAVROVSKIY**<br>1984 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 5 days | Moscow City Court<br>13/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.00 p.m. on 31/01/2021 until 4.00 p.m. on 02/02/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 5,000 |
| 16. | 59765/21<br>01/12/2021 | **Dmitriy Vladimirovich ORLIK**<br>1977 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Moscow City Court<br>17/06/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

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|---|---|---|---|---|---|---|---|---|---|
| 17. | 59773/21<br>01/12/2021 | **Konstantin Nikolayevich LUNEV**<br>1993 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Moscow City Court<br>07/06/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 18. | 59796/21<br>01/12/2021 | **Yuliya Andreyevna GRACHEVA**<br>1980 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 20,000 | Moscow City Court<br>03/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.15 a.m. until 6.00 p.m. on 02/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 19. | 59852/21<br>29/11/2021 | **Yuliya Sergeyevna MASHUKOVA**<br>1996 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 20,000 | Moscow City Court<br>01/06/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 20. | 59871/21<br>29/11/2021 | **Aleksandr Nikolayevich NEMUROV**<br>1970 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Moscow City Court<br>17/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.50 a.m. on 31/01/2021 until 5.00 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 21. | 59889/21<br>24/11/2021 | **Alisa Aleksandrovna ZELKOVA**<br>2002 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Moscow City Court<br>25/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.48 p.m. on 02/02/2021 until 5.23 a.m. on 03/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 22. | 59905/21<br>24/11/2021 | **Dmitriy Aleksandrovich SHOSHNEV**<br>1976 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Moscow City Court<br>11/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.47 p.m. until 8.37 p.m. on 02/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 23. | 59921/21<br>24/11/2021 | **Darya Vyacheslavovna VERNIDUB**<br>1999 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Krasnoyarsk<br><br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Krasnoyarsk Regional Court<br>27/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.24 p.m. until 7.00 p.m. on 31/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 24. | 59925/21<br>24/11/2021 | **Marina Markovna KARULINA**<br>1958 | Memorial Human Rights Centre<br>Moscow | Rally "Medical care to Navalnyy"<br><br>St Petersburg<br><br>21/04/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | St Petersburg City Court<br>13/07/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 7.30 p.m. on 21/04/2021 until 3.30 a.m. on 24/04/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 25. | 60067/21<br>01/12/2021 | **Nikita Pavlovich FANIN**<br>1997 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Moscow City Court<br>13/08/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.29 p.m. on 31/01/2021 until 1.30 a.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 26. | 60081/21<br>24/11/2021 | **Roman Aleksandrovich SONICHEV**<br>2001 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Kaluga<br><br>31/01/2021 | article 20.2.2 § 1 of CAO | fine of RUB 14,000 | Kaluga Regional Court<br>25/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.25 p.m. until 11.45 p.m. on 31/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 27. | 60085/21<br>24/11/2021 | **Danil Yevgenyevich AKATOV**<br>2001 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>23/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Moscow City Court<br>07/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.30 p.m. on 23/01/2021 until 9.50 p.m. on 25/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 28. | 60211/21<br>24/11/2021 | **Svyatoslav Vladimirovich YERMILIN**<br>1997 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Yekaterinburg<br><br>23/01/2021 | article 20.2 § 5 of CAO | 20 hours of community work | Sverdlovsk Regional Court<br>03/06/2021 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 3,500 |

[1] Plus any tax that may be chargeable to the applicants.